

AUTHORIZATION FOR RELEASE OF PROTECTED HEALTH INFORMATION

HIPAA 45 CFR §164.508 · 42 CFR Part 2 · C.R.S. §27-65-124

SECTION 1 — CLIENT INFORMATION

Legal First Name

Legal Middle Name

Legal Last Name

Date of Birth (MM/DD/YYYY)

Last Four Digits of SSN (optional — for ID purposes only)

Current Location

Community

Jail / Detention

Other (specify below)

Treatment Facility

Hospital

Facility Name (if applicable)

Facility Address (if applicable)

Case / Docket Number

Court of Jurisdiction

SECTION 2 — AUTHORIZING PARTY

I am signing this authorization as:

The individual named above (self)

Legal Guardian of the individual named above

Power of Attorney for Healthcare

Court-Appointed Representative

Other legal authority (specify below)

If signing as someone other than the client, complete the following. You must attach a copy of the legal documentation granting this authority (guardianship order, POA, court appointment, etc.).

Authorizing Party — Full Legal Name

Relationship to Client

Phone Number

Email Address

Attach Corresponding Documents Granting Legal Authority:

SECTION 3 — PARTIES AUTHORIZED TO RELEASE INFORMATION TO MONARCH

I authorize the following individuals, agencies, or institutions to release my protected health information to Monarch Competency and its clinical, medical, and administrative staff for the purposes described in Section 5.

Authorize Monarch to request records from ALL providers, agencies, and individuals involved in my current or past mental health, medical, substance use, or legal matters. (This general authorization supplements the specific parties listed below.)

#	Name / Organization	Role or Relationship	Phone or Email
1			
2			
3			
4			
5			
6			

SECTION 4 — PARTIES AUTHORIZED TO RECEIVE INFORMATION FROM MONARCH

I authorize Monarch Competency to release my protected health information to the following individuals, agencies, or institutions for the purposes described in Section 5.

#	Name / Organization	Role or Relationship	Phone or Email
1			
2			
3			
4			
5			
6			

SECTION 5 — INFORMATION AUTHORIZED FOR RELEASE

I authorize the release of the following categories of information (check all that apply):

General Health Records
☐ Intake / Admission Assessment

☐ Progress Notes / Session Summaries

☐ Psychiatric Evaluation

☐ Medical Records and Physical Exams

☐ Laboratory and Diagnostic Results

☐ Court Reports / Legal Correspondence

☐ Incident Reports (if applicable)

☐ Other (specify below)

☐ Treatment Plans and Updates

☐ Discharge Summary and Aftercare Plan

☐ Psychological Testing Results

☐ Medication Records (MAR)

☐ Competency Restoration Records

☐ Case Management Notes

☐ All Records Maintained by Monarch

Specially Protected Information — Initial Each Category You Authorize

The following categories carry heightened legal protection. Each requires your separate initials to authorize release.

Initials	Category	Legal Protection
☐	Substance Use Disorder (SUD) Treatment Records	Protected under 42 CFR Part 2. Re-disclosure is prohibited without additional written consent.
☐	Mental Health Treatment Records	Protected under C.R.S. §27-65-124. Disclosure limited to purposes authorized under the Colorado Mental Health Code.
☐	Genetic Information	Protected under the Genetic Information Nondiscrimination Act (GINA).
☐	Psychotherapy Notes (if maintained separately)	Protected under HIPAA 45 CFR §164.508(a)(2).

SECTION 6 — PURPOSE OF DISCLOSURE

This information is being released for the following purpose(s) (check all that apply):

☐ Intake assessment and admission determination

☐ Competency restoration services and court reporting

☐ Communication with court / legal system

☐ Communication with referring agency or professional

☐ Discharge planning and continuity of care

☐ Other (specify below)

☐ Treatment planning and care coordination

☐ Communication with legal representatives

☐ Communication with probation, parole, or corrections

☐ Communication with family members or support persons

☐ Insurance verification and billing

SECTION 7 — EXPIRATION OF AUTHORIZATION

This authorization shall remain in effect (select one):

Until discharge from Monarch Competency, plus 90 days for aftercare coordination

For a period of 12 months from the date signed

For a period of months from the date signed

Until the following specific date:

Until revoked in writing by the undersigned

If no option is selected, this authorization will automatically expire 12 months from the date of signature.

SECTION 8 — CLIENT RIGHTS AND ACKNOWLEDGMENTS

Please read each statement carefully and initial in the space provided to confirm your understanding.

Initials	Right	Statement
	Right to Revoke	I may revoke this authorization at any time by submitting a written request to Monarch Competency. Revocation will not affect information already released in reliance on this authorization prior to receipt of my written revocation.
	Voluntary Authorization	Signing this authorization is voluntary. Monarch Competency will not condition my treatment on whether I sign this authorization, except where disclosure is necessary for treatment, payment, or healthcare operations, or where treatment is provided solely to create records for a third party.
	Potential for Re-Disclosure	Once my information is disclosed, it may be subject to re-disclosure by the recipient and may no longer be protected by federal privacy regulations. However, Substance Use Disorder (SUD) records protected under 42 CFR Part 2 may not be re-disclosed without my specific written consent, except as otherwise permitted by law.
	Right to a Copy	I have the right to receive a copy of this signed authorization upon request.
	Right to Inspect Records	I have the right to inspect and obtain a copy of my health information maintained by Monarch Competency, subject to applicable law.
	Court Communication & Competency Restoration	Monarch Competency is required by Colorado law and my court order to communicate with the court regarding my competency restoration progress, including admission status, treatment engagement, progress reports, significant incidents, and discharge recommendations. This obligation exists independently of, and is not affected by, this authorization or any revocation of it.

SECTION 9 — SIGNATURES**Client or Authorized Representative**

By signing below, I confirm that I have read and understand this authorization, have had the opportunity to ask questions, and am signing voluntarily and of my own free will. All information provided is accurate to the best of my knowledge.

Printed Name

If signing as representative — legal authority / role

Signature

Date

Witness Signature

A witness signature is required if the client is incarcerated, hospitalized, or residing in a treatment facility, or if there is any question regarding the client's capacity to consent.

Witness Printed Name

Title / Organization

Witness Signature

Date

SECTION 10 — REVOCATION OF PRIOR AUTHORIZATION (COMPLETE ONLY IF REVOKING)

I, , hereby revoke the Authorization for Release of Protected Health Information that

I signed on . I understand that this revocation will not affect any information already disclosed in reliance on my prior authorization before Monarch Competency received this written revocation.

Printed Name

Signature

Date

Notice Regarding Substance Use Disorder Records — 42 CFR Part 2

This information has been disclosed from records protected by federal confidentiality rules (42 CFR Part 2). The federal rules prohibit you from making any further disclosure of this information unless expressly permitted by the written consent of the person to whom it pertains, or as otherwise permitted by 42 CFR Part 2. A general authorization for the release of medical or other information is NOT sufficient for this purpose (see §2.31). The federal rules restrict any use of this information to criminally investigate or prosecute any alcohol or drug abuse patient, except as provided at §§2.12(c)(5) and 2.65.

MONARCH COMPETENCY INTERNAL USE ONLY**ADMITTED**

Reference Code:

Admission Date:

Received By (printed name)

Date Received:

Notes:

Entered by:

Date entered: